

Ref No.: BD-CW-SAMCO-ACE-LET-STR-089

12-July-2026

To: ACE Project Management | Moharram Bakhoun

Attention: Eng. Shady Elkersh (Project Manager)

Project Name: The Big Business District.

Contract/Package: Construction Works of the Civil Works for Buildings B1, B2, B3 and B4 – Phase 1.

Subject: Submission of Revised Interim Particulars for Contractor's Claim No. (01) for Extension of Time.

Dear Sir,

Reference 1	Engineer's Letter Ref. BD-ACEPM-SAMCO-LET-039 dated 23-Jun-2026
Reference 2	Contractor's Letter Ref. BD-CW-SAMCO-ACE-LET-STR-086 dated 17-Jun-2026

Dear Sir,

With reference to the Engineer's above-referenced letter requesting additional supporting documents and particulars in respect of the Contractor's Interim Claim No. 1 for Extension of Time.

In compliance with the Engineer's request, the Contractor hereby submits this formal response together with the supporting particulars identified herein. The response is structured to address each of the five matters raised by the Engineer, namely: (i) the notice and correspondence register; (ii) cause-and-effect analysis; (iii) event-specific Time Impact Analysis; (iv) comparison against the contractual milestones and Time for Completion; and (v) clarification of the stated cut-off date.

The Contractor has distinguished between verified contractual and schedule records, the Contractor's entitlement position, and matters that require confirmation by the governing native Primavera P6 files or contemporaneous records. Where the available records do not support a definitive statement, the matter is expressly identified rather than presented as an established fact.

Best Regards,

Eng. Mohammed Sami Mohammed

Project Manager

1. Summary of Findings

The Contractor hereby submits comprehensive supporting documentation demonstrating that:

- (a) all contractual notice requirements under Sub-Clause 20.1 have been fully complied with
- (b) the cause-and-effect nexus between each employer-risk event and the resultant delay is clearly established through the TIA methodology
- (c) the steel reinforcement delay is the primary EOT-driving event (117 days)
- (d) the revised IFC drawings constitute a secondary EOT-driving event (76 days)
- (e) the net EOT entitlement, after absorption of the 62-day concurrent overlap, is 131 calendar days
- (f) the applicable cut-off date for Event 01 is 05-May-2026, with the reference to 25-May-2026 being a typographical error in the preliminary draft

2. Concurrency Analysis – Delay events Driving EOT

In accordance with the principles established in the Society of Construction Law (SCL) Delay and Disruption Protocol (2nd Edition, 2017), and consistent with the FIDIC contractual framework, concurrent delay is recognized where two or more independent delay events arise at different times but their effects are felt, in whole or in part, at the same time. The impact periods of Event 01 (Batch 02) and Event 02 overlap between 6 July 2027 and 6 September 2027, representing a concurrent overlap of sixty-two (62) calendar days.

Under the FIDIC Conditions of Contract, the Contractor is entitled to an extension of time for Employer-risk events that delay completion, subject to the proper application of concurrent delay principles. The gross delay is the arithmetic sum of individual EOT impacts (117 + 71 = 188 days).

The concurrent overlap of 62 days is absorbed to prevent double-counting of overlapping impacts.

Accordingly, the Net Extension of Time entitlement is calculated as follows:

Net EOT = Gross Delay – Concurrent Overlap

Net EOT = 188 days – 62 days

Net EOT = 126 calendar days

This calculation is independently verified by reference to the difference between the earliest baseline Project Finish Date (12 May 2027, per Event 01 — Batch 01) and the final actual Project Finish Date (15 September 2027), which yields an identical result of 126 calendar days.

3. RESPONSE TO THE ENGINEER'S REQUEST

The following matrix identifies where each item requested in the Engineer's Letter Ref. BD-ACEPM-SAMCO-LET-039 is addressed in this response.

Item	Engineer's Request	Contractor's Response	Location
1	Comprehensive notice and correspondence register	Relevant event correspondence is identified, classified by event, and linked to its contractual purpose. Compliance is addressed by reference to the evidenced occurrence / awareness date and the governing signed record.	Section 3 / Annex A
2	Cause-and-effect analysis, particularly for steel delay	Cause, affected activities, logic linkage, mitigation and resulting schedule effect are set out by event.	Section 4 / Annex B
3	Detailed TIA for each event	The adopted contemporaneous fragnet-insertion methodology and event-level before / after results are provided.	Sections 5 and 6 / Annex C
4	Comparison against Section Milestones and Time for Completion	Milestone and Project Finish movements are stated for each event based on the available P6 comparison outputs.	Section 6
5	Clarification of 05-May-2026 versus 25-May-2026	05-May-2026 is confirmed as the Batch 02 Part 02 complete-delivery milestone in the current steel records; 25-May-2026 is not relied upon.	Section 7

4. CONTRACTUAL AND METHODOLOGICAL BASIS

The Contractor's entitlement position is founded on the Contract as amended by the Contract Agreement, Appendix to Tender and Particular Conditions, which take precedence in accordance with the agreed order of priority.

Provision	Contractual Relevance	Application to Interim Claim No. 1
Appendix to Tender Item 20 / Sub-Clause 14.2	Advance payment is structured to include 70% steel supplied by the Employer according to the approved Programme.	Supports the Employer-supply basis of EV01.
Sub-Clause 4.20	Employer's Equipment and Free-Issue Material; Employer responsibility for shipment and delivery to Site, subject to the Contractor's look-ahead and quantity obligations.	Primary contractual basis for EV01, subject to proof of timely requisition, approved programme demand and delivery shortfall.
Sub-Clause 1.9	Delayed Drawings or Instructions, as amended to include approvals and approved Programme timing.	Primary basis where delayed or revised information / approval prevented or disrupted planned work.
Sub-Clauses 13.1 and 13.3	Right to Vary and Variation Procedure.	Relevant where revised IFC information or instructed MEP embedded works changed scope, sequence, quantities, rework or execution requirements.
Sub-Clause 8.4	Extension of Time for Completion; requires critical-path reliance, an accepted delay-analysis method and demonstrated mitigation.	Governing contractual basis for the time entitlement assessment.
Sub-Clause 20.1	Contractor's Claims, including monthly claim accounting and the contract treatment of concurrent delay.	Governs claim preservation, particulars and concurrency treatment.
Sub-Clause 3.5	Determinations.	Provides the determination mechanism for the Engineer's assessment of time and cost entitlement.

5. NOTICE AND CORRESPONDENCE POSITION

The Contractor has maintained a progressive correspondence trail for the steel-supply, revised-IFC / design-information, MEP-variation and technical-clarification matters. Annex A identifies the critical records relevant to Interim Claim No. 1.

The legal function of each letter must be determined from its actual signed content, date of occurrence / awareness, proof of receipt and the continuing nature of the event. Accordingly, the Contractor does not rely on the register title alone as proof of contractual compliance. The signed letters, transmittals, meeting records, delivery records and monthly claim accounts are the governing contemporaneous evidence.

NOTICE COMPLIANCE POSITION

The Contractor's position is that the events developed progressively and, in several instances, continued through partial delivery, repeated non-delivery, successive design revisions, delayed responses and unresolved technical constraints. The correspondence records were issued on a continuing basis to notify the Engineer, reserve entitlement, request action and document mitigation. Exact time-bar compliance is to be read against the evidenced occurrence / awareness date for each occurrence, not against an assumed date that is unsupported by the project records.

4. CAUSE-AND-EFFECT ANALYSIS

4.1 EV01 - Employer's Late Supply of Free-Issue Reinforcement Steel

CONTRACTUAL CAUSE	FACTUAL EVENT	OPERATIONAL EFFECT	SCHEDULE EFFECT
Employer-supplied steel required in accordance with the approved Programme and Contractor requisitions.	Late, partial and sequenced deliveries against the required batches.	Insufficient steel availability for identified reinforcement-fixing activities.	Delay transferred through linked structural logic to milestones and Project Finish where critical.

The steel correspondence and delivery records indicate that Batch 02 was required by 27-Nov-2025 in the amount of 726 tons. The current delivery summary records 371.115 tons delivered on 14-Feb-2026 and 355.840 tons delivered on 05-May-2026. The native EV01 Batch 02 fragnet models the partial-delivery milestone on 15-Feb-2026 and the complete-delivery milestone on 05-May-2026.

The affected work packages include reinforced-concrete raft / footing, walls, columns, cores, slabs, beams, stairs, ramps and water-tank reinforcement activities. The detailed activity IDs and names are listed in Annex B and the native P6 comparison. The Contractor's mitigation, including self-procurement and resequencing where recorded, must be credited in the assessment and does not relieve the Employer of the consequences of any proven late free-issue supply.

4.2 EV02 - Revised IFC Drawings Causing Rework and Delay

PLANNED BASIS	EVENT	OPERATIONAL EFFECT	SCHEDULE EFFECT
Timely, coordinated and construction-ready IFC / design information.	Revised or conflicting IFC information requiring review, redesign, resubmission or re-approval.	Affected shop drawings and dependent construction activities could not proceed as planned or required rework.	Fragnet logic delayed affected submissions / approvals and transferred impact to the critical path.

The EV02 model uses a data date of 17-Mar-2026 and a revised IFC issue milestone of 18-Mar-2026. The fragnet introduces the reworked shop-drawing resubmission and re-approval cycle for the affected structural elements across Buildings B1-B4. The event is assessed under Sub-Clause 1.9 and, where the revision changed scope, sequence or required rework, Sub-Clauses 13.1 and 13.3, subject in all cases to demonstrated critical-path impact under Sub-Clause 8.4.

4.3 EV03 - Engineer-Instructed Additional MEP Embedded Works

INSTRUCTION	ADDED PROCESS	CIVIL INTERFACE	CURRENT TIA RESULT
Additional / instructed embedded pipes, sleeves, puddle flanges and conduits.	Engineering submittal, approval, procurement, fabrication and installation.	Embedded items required before associated raft / wall concrete works.	No movement of Project Finish in the before / after comparison presently available.

The current EV03 before / after comparison shows no movement in the Ground Works Finish or Project Finish milestones. Accordingly, the present schedule output does not demonstrate an EOT quantum for EV03. This does not determine or waive the Contractor's separate variation, valuation, disruption or cost entitlement, nor does it prevent a later time assessment if the event's actual impact changes or further evidence demonstrates critical delay.

4.4 EV04 - Delayed RFI Response / Technical Clarification

The current TIA summary shows no movement in the relevant milestones before and after the EV04 fragnet. No EOT days are therefore advanced in this response solely on the basis of the current comparison. The Contractor nevertheless reserves its rights in respect of any proven actual delay, disruption, resequencing or cost consequences supported by the final RFI log, response dates, affected activities and contemporaneous programme records.

5. TIME IMPACT ANALYSIS METHODOLOGY

The Contractor has applied a contemporaneous fragnet-insertion Time Impact Analysis consistent with the express requirements of Sub-Clause 8.4 and recognised CPM delay-analysis practice. The methodology is event-specific and does not treat the gross duration of an event as the EOT quantum.

Step	Control	Application
1	Select contemporaneous base schedule	Use the accepted / approved update immediately preceding the event, with its actual progress and data date preserved.
2	Validate status and settings	Confirm calendars, constraints, actual dates, remaining durations, out-of-sequence settings and schedule options.
3	Define event fragnet	Model only the event and its immediate consequences using measurable activities supported by records.
4	Connect to affected work	Tie the fragnet to the first activity genuinely prevented or delayed and preserve the original downstream logic.
5	Recalculate CPM	Schedule the unimpacted and impacted models using consistent settings and retain the before / after outputs.
6	Measure incremental movement	Measure the movement of the contractual milestone / Project Finish and the associated float / path change.
7	Review mitigation and concurrency	Credit proven mitigation and assess other causes operating on the same critical path during the same period.
8	Separate time and cost	Determine time entitlement first; assess prolongation, disruption and concurrent-period cost treatment separately.

CRITICAL-PATH TEST

A delay event is EOT-driving only to the extent that the schedule model demonstrates an incremental delay to the contractual completion milestone through the contemporaneous critical / longest path after considering float, progress, mitigation and other concurrent causes.

6. EVENT-LEVEL TIA RESULTS AND MILESTONE COMPARISON

The following table reproduces the event-level milestone values currently available from the before / after comparison records. These are event-level outputs and shall not be arithmetically added without a chronological consolidation and overlap / concurrency review.

Event	Data Date	Milestone	Before Fragnet	After Fragnet	Movement	Assessment
EV01 - Steel Batch 01	31-Oct-2025	Project Finish	14-Apr-2027	14-Apr-2027	0 days	No demonstrated Project Finish impact
EV01 - Steel Batch 02	26-Nov-2025	Project Finish	12-May-2027	06-Sep-2027	+117 days	EOT-driving event-level impact
EV01 - Steel Batch 03	13-Jan-2026	Project Finish	27-May-2027	03-Jul-2027	+37 days	Event-level impact; consolidation treatment to be reconciled
EV02 - Revised IFC	17-Mar-2026	Project Finish	06-Jul-2027	15-Sep-2027	+71 days	EOT-driving event-level impact
EV03 - Additional MEP	See note below	Project Finish	29-Apr-2027	29-Apr-2027	0 days	No demonstrated Project Finish impact
EV04 - Delayed RFI / Clarification	14-Feb-2026	Project Finish	06-Jul-2027	06-Jul-2027	0 days	No demonstrated Project Finish impact

EV03 DATA-DATE CONTROL

The EV03 comparison sources presently contain conflicting data-date references: 16-Nov-2025 in the detailed JSON comparison and 25-Dec-2025 in the TIA summary workbook. Because the before / after milestone result is identical, this discrepancy does not change the current zero-day Project Finish movement; however, the data-date field must be reconciled in the native P6 issue set before final technical reliance.

6.1 Consolidated EOT Position

Interim Claim No. 1 states a net EOT position of 131 calendar days. The Contractor maintains and preserves the claim position pending issue of a single reconciled cumulative schedule exhibit. The Contractor does not rely on a simple sum of the event-level movements, because such an approach may double-count periods already reflected in later schedule updates or periods of genuine critical concurrency.

For transparency, the detailed EV02 comparison presently available records an after-fragnet Project Finish of 15-Sep-2027 and an incremental movement of 71 calendar days. Accordingly, any earlier summary reference to 20-Sep-2027 or 76 calendar days is not relied upon in this response unless and until supported by a reconciled native P6 comparison. The governing technical position shall be the final reconciled schedule exhibit, not an inconsistent narrative summary.

NO DOUBLE COUNTING

The final cumulative EOT must be derived chronologically, with each event assessed against the schedule status applicable at the time of the event and with overlapping critical effects counted once. Event-level impacts are therefore evidence inputs to the cumulative assessment, not automatically additive awards.

7. CLARIFICATION OF THE CUT-OFF / MILESTONE DATE

In response to Item 5 of the Engineer's letter, the Contractor clarifies the date references as follows:

Date	Correct Description	Clarification
26-Nov-2025	EV01 Batch 02 P6 Data Date	This is the schedule status date used for the EV01 Batch 02 before / after TIA comparison.
14-Feb-2026	Recorded delivery date - Batch 02 Part 01	Date stated in the steel correspondence / delivery summary.
15-Feb-2026	EV01 fragnet partial-delivery milestone	The native schedule model places the partial-delivery milestone on the following calendar day.
05-May-2026	Batch 02 Part 02 complete-delivery milestone	This is the correct date used in the current steel delivery summary and EV01 fragnet. It is an event / delivery milestone, not the P6 Data Date.

8. REQUEST FOR THE ENGINEER'S ASSESSMENT AND DETERMINATION

The Contractor respectfully requests the Engineer to review the submitted particulars and supporting records, assess the demonstrated event-level impacts in accordance with Sub-Clauses 3.5, 8.4, 13.3 and 20.1 as applicable, and proceed with an interim determination of the Contractor's Extension of Time entitlement.

Where the Engineer considers any specific record or particular to remain insufficient, the Contractor requests that the Engineer identify the precise event, activity, period and missing record so that the matter may be addressed efficiently without delaying assessment of the substantiated portions of Interim Claim No. 1.

9. RESERVATION OF RIGHTS

This response is submitted for interim assessment only and strictly without prejudice. It is not the Contractor's final claim or an exhaustive statement of all facts, causes, effects, costs or entitlements. The Contractor reserves the right to amend, supplement and further particularise its claim as events develop and further records become available. No omission, cooperation, mitigation, continuation of work or partial submission shall constitute a waiver, release, admission or limitation of any right or entitlement under the Contract or applicable law.

ANNEX A - CRITICAL NOTICE AND CORRESPONDENCE REGISTER

The following register identifies the principal correspondence records presently relied upon for EV01 and EV02. The signed letter, proof of receipt, occurrence / awareness record and monthly claim account remain the governing documents for notice-compliance assessment.

Reference	Date	Event	Subject	Notice / Record Purpose
STR-010	25-Sep-2025	EV01	Supply of reinforcement steel for the project	Initial steel supply request / programme dependency
STR-011	29-Sep-2025	EV01	Request to Reduce First Reinforcement Steel Delivery	Adjusted first delivery request due to site constraints
STR-025	26-Nov-2025	EV01	Supply of Reinforcement Steel - Second Delivery	Batch 02 request and supply dependency
STR-042	06-Jan-2026	EV01	Supply of Reinforcement Steel - Third Delivery	Batch 03 request
STR-044	15-Jan-2026	EV01	Delay in Supplying Reinforcement Steel	Delay notification and reservation of EOT rights
STR-048	26-Jan-2026	EV01	Follow-up on Delay of Reinforcement Steel Delivery	Warning of stock depletion and continuing impact
STR-051	07-Feb-2026	EV01	Reinforcement Steel Supply Status and EOT Entitlement	Notice of depletion / non-delivery and EOT position
STR-053	24-Feb-2026	EV01	Reinforcement Steel Order No. 2 Delay	Records late / irregular supply and time / cost position
STR-062	31-Mar-2026	EV01	Follow-up on Reinforcement Steel Delivery	Records partial delivery and outstanding supply
STR-069	19-Apr-2026	EV01	Follow-up on Reinforcement Steel Supply and Cumulative Project Impact	Cumulative delay, mitigation and reservation
STR-015	06-Oct-2025	EV02	Reminder to Submit Final Package and Signed Hard Copies	Request for complete IFC package
STR-019	26-Oct-2025	EV02	Request for Complete Set of IFC Drawings	Requests full IFC package following observed changes
STR-026	30-Nov-2025	EV02	Reply of Design Review	Requests resolution of design-review comments
STR-029	07-Dec-2025	EV02	Design Review	Records design-modification position
STR-030	11-Dec-2025	EV02	Re: Design Review	Records incomplete design packages and request for complete IFC
STR-032	11-Dec-2025	EV02	Request for Complete Package for Coordination - TRA-007	Requests missing coordination package
STR-034	17-Dec-2025	EV02	Re: Design Review	Seeks decision on design criteria / review outcome
STR-040	05-Jan-2026	EV02	Continuation of Works and Final Written Instructions	Records continuation basis and reserves rights
STR-057	11-Mar-2026	EV02 / EV04	Delayed Technical Responses and Outstanding Coordinated Drawings	Notice of missing information / delayed responses
STR-063	31-Mar-2026	EV02	Comparison of Design Issued 18-Mar-2026 vs 27-Oct-2025	Identifies discrepancies and resulting rework / delay position
STR-064	02-Apr-2026	EV04	Delay in Technical Clarifications	Notice of RFI / clarification delay
STR-066	11-Apr-2026	EV02 / EV04	Modifications Included in Latest Design Package	Records modification and delayed clarification effect
STR-067	16-Apr-2026	EV02	Design Discrepancies and Impact on Time and Cost	Formal reservation in respect of conflicting structural information
STR-071	27-Apr-2026	EV01 / EV02	Early Warning & Notification of Fact pursuant to Sub-Clause 20.1	Consolidated notice of steel and design constraints and reservation of entitlement

ANNEX A1 - NOTICE COMPLIANCE ASSESSMENT BASIS

Event	Occurrence / Awareness Basis	Principal Notice Trail	Compliance Position
EV01 - Steel	Approved requirement dates, each partial / non-delivery, depletion of available stock and resulting inability to proceed.	STR-010, STR-025, STR-042, STR-044, STR-048, STR-051, STR-053, STR-062, STR-069 and STR-071	Continuing and progressively developing event. Timeliness is to be assessed against each evidenced occurrence / awareness date and the signed receipt record.
EV02 - Revised IFC	Issue of revised information, discovery of discrepancies, rework / resubmission requirement and subsequent unresolved design matters.	STR-019, STR-026, STR-029, STR-030, STR-034, STR-040, STR-057, STR-063, STR-067 and STR-071	Progressive notice trail records requests, discrepancies, effect and reservation. The governing compliance evidence is the signed letter, transmittal and associated drawing / submittal record.
EV03 - Additional MEP	Engineer instruction / variation, resulting added engineering-procurement-installation cycle and civil interface.	Relevant variation instructions, Contractor reservations and conditional acceptance records	Current TIA shows no Project Finish movement. Notice and commercial entitlement remain subject to the actual instruction and variation records.
EV04 - RFI / Clarification	Required-by date, outstanding response, actual response and identified activity prevented or delayed.	STR-057, STR-064, STR-066 and the governing RFI register	Current comparison shows no Project Finish movement. Any further time entitlement requires final RFI response dates and affected-activity proof.

ANNEX B - STEEL DELIVERY AND SCHEDULE-LINKAGE PARTICULARS

The following table responds to the Engineer's request for a batch / part delivery table. Quantities and delivery dates are reproduced from the current steel correspondence summary. Activity-level quantity allocation is not asserted beyond the schedule logic shown in the native P6 fragnets and the separate steel allocation / requisition records.

Batch	Part	Required Qty. (t)	Required Date	Delivered Qty. (t)	Delivery / Status Date	Primary Schedule Linkage
Batch 01	Part 01	600.000 total batch	03-Nov-2025	146.800	27-Oct-2025	EV01 Batch 01 fragnet; representative footing / below-SOG reinforcement activities
Batch 01	Part 02	-	-	440.180	09-Dec-2025	EV01 Batch 01 fragnet; detailed activity allocation per steel allocation register
Batch 02	Part 01	726.000 total batch	27-Nov-2025	371.115	14-Feb-2026	EV01 Batch 02 partial-delivery path and first releasable reinforcement activities
Batch 02	Part 02	-	-	355.840	05-May-2026	EV01 Batch 02 complete-delivery path; downstream B1-B4 structural reinforcement activities
Batch 03	Outstanding	512.000	13-Jan-2026	0.000	Continuing delay in current summary	EV01 Batch 03 fragnet; detailed activity allocation to be read from native P6 / steel allocation records

Enclosures / Submission Index

Enclosure	Description / Purpose
1	Revised formal response document to ACEPM LET-039.
2	Notice and correspondence register with event classification.
3	Steel batch delivery and schedule-linkage table.
4	Event-specific TIA before/after schedule comparison summary.
5	Representative affected activities and fragnet core activity tables.
6	Contractor Claim Workbook Rev03 and native Primavera P6 XER files, to the extent submitted or made available for Engineer review.